

25STCV36722 25STCV36722

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-20

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Case Number: 25STCV36722 Hearing Date: July 20, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

RAUL ARMANDO RAMOS LECHUGA,

Plaintiff,

vs.

URTH CAFFE CORPORATION, et al.,

Defendants.

Case No.:

25STCV36722

Hearing Date:

July 20, 2026

ORDER SUSTAINING DEMURRER TO FIRST AMENDED COMPLAINT

I. BACKGROUND

Plaintiff Raul Armando Ramos Lechuga ("Lechuga") was allegedly subjected to harassment and assault by his supervisor, non-party Santiago Llamas ("Llamas"), during the course of his employment with Defendant Urth Cafe Corporation ("Urth"). Lechuga reported this conduct to Defendant Jacqueline Vasquez ("Vasquez") and Edgar Encarnacion ("Encarnacion"), who were a HR representative and district manager, respectively. Vasquez allegedly accused Lechuga of fabricating his report, leading to his eventual termination. Lechuga sues Defendants for seven causes of action, including 6 FEHA violations and intentional infliction of emotional distress.

On March 12, 2026, Defendants Encarnacion, Jilla Berkman ("Jilla"), and Shallom Berkman ("Shallom") (collectively "Moving Defendants") filed the instant demurrer to the entirety of the first amended complaint, on the basis FEHA claims cannot be brought against individual defendants. Lechuga filed an opposition. Moving Defendants filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10 states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Moving Defendants demurr to all causes of action asserted against Moving Defendants, listed as follows: sexual harassment, failure to prevent harassment, retaliation, failure to prevent retaliation, and aiding and abetting FEHA violations. All relevant causes of action are based upon violation of FEHA, or Government Code section 12940, et seq. Moving Defendants request the Court sustain the demurrer as a party may not sue individuals under FEHA, unless said individual committed actionable harassment.

The Court notes it will not address any potential wrongful termination claims, as the wrongful termination claim is not asserted against any party. Moving Defendants have no basis to demurrer to a cause of action not asserted against them. Similarly, the Court will not address any potential intentional infliction of emotional distress claims as that is only claimed against Vasquez, who is not a moving party for this motion.

A. Harassment

Lechuga's cause of action for harassment is subject to demurrer as no Moving Defendant is alleged to have sexually harassed or assaulted Lechuga. FEHA allows an individual to be liable for harassment only if the individual employer is the party perpetrating the harassment. (Gov. Code § 12940, subd. (j)(3).)

Lechuga's complaint alleges non-party Llamas engaged in sexual harassment, discriminatory language, unwelcome physical contact, and abusive behavior towards Lechuga. No other individual is alleged to have engaged in harassing behavior. Therefore, Lechuga's complaint fails to allege facts sufficient to allege a cause of action for harassment against Moving Defendants. The Court sustains the demurrer to this cause of action.

B. Retaliation / Failure to Prevent Retaliation / Failure to Prevent Harassment

Lechuga's causes of action for retaliation and failure to prevent retaliation as FEHA explicitly prohibits attributing individual liability on supervisor for such claims.

FEHA explicitly holds that, only an employer may be found liable for discrimination against an employee. (Gov. Code § 12940, subd. (a).) Similarly, only an employer, labor organization, employment agency or training program, may be liable for failure to take all reasonable steps necessary to prevent discrimination and harassment. (Id. at subd. (k).)

An employer is "any person acting as an agent of an employer, directly or indirectly." (Gov. Code § 12926, subd. (d).) The 'agent' language is not intended to create individual, personal liability for discrimination, but rather to ensure employers are held liable for discrimination by supervisory employees. (Janken v. GM Hughes Electronics (1996) 46 Cal. App. 4th 55, 67, 70-71.) These limitations similarly extend to causes of action for retaliation, failure to prevent retaliation, and failure to prevent harassment. (Lloyd v. City of Los Angeles (2009) 172 Cal. App. 4th 320, 330; Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal. 4th 1158, 1173; Fiol v. Doellstedt (1996) 50 Cal. App. 4th 1318, 1326.)

Moving Defendants, as owners and supervising officers, cannot be held liable as individuals for practices such as retaliation or failing to prevent retaliatory or harassing behavior. These causes of action are without sufficient facts to support a claim and therefore are subject to demurrer.

C. Aiding and Abetting

Lechuga's cause of action for aiding and abetting is similarly without factual basis, as the FEHA aiding and abetting subdivision was not intended to apply to individuals like Moving Defendants.

Government Code section 12940, subdivision (i) holds it is unlawful for "any person to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under this part, or to attempt to do so." However, the section is not intended to apply to supervisory individuals: "we conclude that the Legislature did not intend to impose personal liability upon individual supervisory employees by the roundabout method of "aiding and abetting" language. If we have misperceived the Legislature's intent, the Legislature can correct our misperception by enacting statutory language clearly stating the exposure to personal liability of all individual supervisory employees in California." (Janken supra at p. 79.) As the legislature never updated the statutory language to explicitly include supervisory employees, despite numerous opportunities, law dictates this section is not intended to apply to supervisory employees.

As all of Moving Defendants are either supervisory employees or owners, acting as supervisory employees, this cause of action has insufficient facts to support a claim and is therefore subject to demurrer.

D. Leave to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) While Lechuga requests leave to amend, Lechuga makes no argument as to how he will amend the pleading. Although Lechuga has not met his burden, the Court grants leave to amend in the interest of resolving this issue on the merits and allowing Lechuga another opportunity to present an actionable complaint.

IV. CONCLUSION

Defendants Edgar Encarnacion, Jilla Berkman, and Shallom Berkman's demurrer to the SAC is SUSTAINED, with 30 days leave to amend.

Moving Party is ordered to give notice.

DATED: July 20, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
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I. BACKGROUND

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On April 23, 2026, Vasquez filed the instant demurrer to the entirety of the first amended complaint, on the basis FEHA claims cannot be brought against individual defendants and the IIED does not have facts sufficient to support a cause of action. Lechuga filed an opposition. Vasquez filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10 states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

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evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Vasquez demurs to all causes of action asserted against Vasquez. The causes of action for sexual harassment, failure to prevent sexual harassment, retaliation, failure to prevent retaliation, and aiding and abetting FEHA violations are based upon violation of FEHA, or Government Code section 12940, et seq. Vasquez request the Court sustain the demurrer as a party may not sue individuals under FEHA, unless said individual committed actionable harassment.

Vasquez also demurrers to the IIED claim on the basis the alleged actions do not constitute extreme and/or outrageous conduct.

The Court notes it will not address any potential wrongful termination claims, as the wrongful termination claim is not asserted against any party.

A. Harassment

Lechuga’s cause of action for harassment is subject to demurrer as Vasquez is not alleged to have sexually harassed or assaulted Lechuga. FEHA allows an individual to be liable for harassment only if the individual employer is the party perpetrating the harassment. (Gov. Code § 12940, subd. (j)(3).)

Lechuga’s complaint alleges non-party Llamas engaged in sexual harassment, discriminatory language, unwelcome physical contact, and abusive behavior towards Lechuga. No other individual is alleged to have engaged in harassing behavior. Therefore, Lechuga’s complaint fails to allege facts sufficient to allege a cause of action for harassment against Vasquez. The Court sustains the demurrer to this cause of action.

B. Retaliation / Failure to Prevent Retaliation / Failure to Prevent Harassment

Lechuga’s causes of action for retaliation and failure to prevent retaliation as FEHA explicitly prohibits attributing individual liability on supervisor for such claims.

FEHA explicitly holds that, only an employer may be found liable for discrimination against an employee. (Gov. Code § 12940, subd. (a).) Similarly, only an employer, labor organization, employment agency or training program, may be liable for failure to take all reasonable steps necessary to prevent discrimination and harassment. (Id. at subd. (k).)

An employer is “any person acting as an agent of an employer, directly or indirectly.” (Gov. Code § 12926, subd. (d).) The ‘agent’ language is not intended to create individual, personal liability for discrimination, but rather to ensure employers are held liable for discrimination by supervisory employees. (Janken v. GM Hughes Electronics (1996) 46 Cal. App. 4th 55, 67, 70-71.) These limitations similarly extend to causes of action for retaliation, failure to prevent retaliation, and failure to prevent

harassment. (Lloyd v. City of Los Angeles (2009) 172 Cal. App. 4th 320, 330; Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal. 4th 1158, 1173; Fiol v. Doellstedt (1996) 50 Cal. App. 4th 1318, 1326.)

Vasquez, as a supervising HR officer, cannot be held liable as individuals for practices such as retaliation or failing to prevent retaliatory or harassing behavior. These causes of action are without sufficient facts to support a claim and therefore are subject to demurrer.

C. Aiding and Abetting

Lechuga's cause of action for aiding and abetting is similarly without factual basis, as the FEHA aiding and abetting subdivision was not intended to apply to individuals like Vasquez.

Government Code section 12940, subdivision (i) holds it is unlawful for "any person to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under this part, or to attempt to do so." However, the section is not intended to apply to supervisory individuals: "we conclude that the Legislature did not intend to impose personal liability upon individual supervisory employees by the roundabout method of "aiding and abetting" language. If we have misperceived the Legislature's intent, the Legislature can correct our misperception by enacting statutory language clearly stating the exposure to personal liability of all individual supervisory employees in California." (Janken supra at p. 79.) As the legislature never updated the statutory language to explicitly include supervisory employees, despite numerous opportunities, law dictates this section is not intended to apply to supervisory employees.

As Vasquez is a supervisory employee, this cause of action has insufficient facts to support a claim and is therefore subject to demurrer.

D. IIED

Vasquez next argues Lechuga's claim for IIED is subject to demur, as Vasquez's described conduct was neither extreme nor outrageous.

A cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [citations and quotations omitted].) A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) The defendant must either intend his or her conduct to inflict injury or have engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.)

Lechuga's complaint alleges, after Lechuga reported Santiago's misconduct to HR, Vasquez accused Lechuga of "lying and fabricating his report," including during an in-person termination meeting with Vasquez. (FAC ¶ 25.) It also alleges that during the termination meeting, Vasquez belittled Lechuga, threatened Lechuga with insubordination, and dismissively invited additional complaints after accusing Lechuga of dishonesty. (FAC ¶ 26.)

Extreme and outrageous conduct must be more than "mere insults, indignities, threats, annoyances, petty oppressions or other trivialities" but only to conduct so extreme and outrageous as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community." (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 499.) A supervisor's actions as relating to terminations, criticism of work practices, and negotiations are not within the realm of extreme and/or outrageous conduct, even if improper motive is alleged. (Janken supra at p. 80.)

As alleged, Vasquez acted inappropriately and dismissively within the context of her role as a supervisory employee. However, nothing meets the standard for extreme and outrageous conduct outside all bounds of decency. This cause of action also has insufficient facts to support the alleged claim and is therefore subject to demurrer.

E. Leave to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Lechuga requests leave to amend, stating he can provide further facts in support of his allegations. The Court grants leave to amend in the interest of resolving this issue on the merits and allowing Lechuga another opportunity to present an actionable complaint.

IV. CONCLUSION

Defendant Jacqueline Vasquez's demurrer to the SAC is SUSTAINED, with 30 days leave to amend.

Moving Party is ordered to give notice.

DATED: July 20, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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